

VCL323413 LVNV Funding LLC vs. Watkins, Ronnette

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-08-04

Motion: Plaintiff's Motion for Judgment on the Pleadings

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Re: LVNV Funding LLC vs. Watkins, Ronnette

Case No.: VCL323413

Date: August 4, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Plaintiff's Motion for Judgment on the Pleadings

Tentative Ruling: To grant the motion as requested

Facts

On July 9, 2025, Plaintiff initiated this action for breach of contract.

On January 7, 2026, Defendant answered the complaint "Defendant admits that all of the statements of the complaint or cross-complaint are true EXCEPT:..." and identifying no such exceptions.

On April 18, 2023, Plaintiff filed this motion for judgment on the pleadings on the basis that Defendant's answer did not deny that the money was owed to Plaintiff. Notice of this motion as mailed to the address indicated on Defendant's answer.

Meet and Confer

Plaintiff states that counsel attempted to contact Defendant regarding this Motion in accordance with Code of Civil Procedure section 439(a).

"Before filing a motion for judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the

purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings." (Code Civ. Proc., § 439, subd. (a).) However, "[a] determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion for judgment on the pleadings." (Code Civ. Proc., § 439, subd. (a)(4).)

Authorities and Analysis

A motion for judgment on the pleadings (MJOP) is used to challenge a pleading in the same manner as a general demurrer, i.e., the challenged pleading (1) establishes that the court does not have subject matter jurisdiction or (2) does not allege facts sufficient to support a cause of action or defense. (Code Civ. Proc. § 438(c)(1); *International Assn. of Firefighters v. City of San Jose* (2011) 195 Cal.App.4th 1179, 1196.) Like a demurrer, the grounds for the motion must appear on the face of the pleading or be based on facts capable of judicial notice, including court records. (*Stencel Aero Engineering Corp. v. Superior Court* (1976) 56 Cal.App.3d 978, 986, and fn. 6.)

A motion for judgment on the pleadings may be based upon "matters properly the subject to judicial notice." *Saltarelli & Steponovich v. Douglas* (1995) 50 Cal.App.4th 1, 5. Judicial notice may be taken "of a party's admissions or concessions, but only in cases where the admissions 'cannot reasonably be controverted,' such as in answer to interrogatories or request for admissions, or in affidavits and declaration filed on the party's behalf." (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485.) Here, the answer filed by Defendant sufficiently provides the basis to grant this motion, as Defendant unequivocally admits to owing the amount alleged in the complaint.

To establish a claim for breach of contract, Plaintiff must establish: (1) the existence of the contract, (2) Plaintiffs' performance or excuse for nonperformance, (3) defendants' breach, and (4) the resulting damage to Plaintiff." (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

As noted above, Defendant does not deny the allegations of the complaint and additionally admits that the entire amount alleged, \$1,641.38, is owed.

The Court, therefore, grants the motion for judgment on the pleadings. The Court will sign the proposed judgment, which the Court notes includes \$393.25 in costs as noted in the declaration of Plaintiff's counsel.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.